

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:
ROBERT THOMAS MCTAGGART,

DIA # 96DPHSW001
FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER

Respondent.

FINDINGS OF FACT:

I. Procedure:

1. Pursuant to the Iowa Board of Social Work Examiners Statement of Charges and Notice of Hearing, dated May 13, 1996, an order continuing the hearing, dated June 19, 1996, and a subsequent scheduling order, this matter came on for hearing before the Board on September 9 and October 8, 1996 at Room 318 of the Hotel Ft. Des Moines, in Des Moines, Iowa. The Board members who were present throughout the hearing and heard all of the evidence were: Bruce Buchanan, L.I.S.W., Chairperson; Kathleen M. Morgan, L.I.S.W.; Linda L. Sickels, and Erlene Veverka. The state was represented by Heather Adams, assistant attorney general. The Respondent, Robert Thomas McTaggart, was represented by attorneys Nick Critelli and Connie L. Diekema. The Honorable Donald W. Bohlken, Administrative Law Judge, presided. The hearing was closed to the public pursuant to the election of the Respondent under Iowa Code section 272C.6(1).

2. The allegations submitted to the Board for consideration by the Statement of Charges are stated as six counts. It is averred that the Respondent violated specific sections of the Iowa Code and administrative rules through sexual misconduct (Counts I - III); violation of confidences and secrets of a patient (Count IV); and the solicitation of loans from a patient (Counts V-VI).

3. The Board convened in executive session to consider and deliberate the evidence and reach this decision.

4. In the findings of fact which follow, citations are made only to the documentary evidence, as no transcript was made of the hearing. The testimony was, however, relied upon in making the following findings of fact.

II. The Record:

4A. The record includes the Notice of Hearing and Statement of Charges, the testimony of the witnesses, and the following exhibits:

State Exhibit A: Complaint.

State Exhibit C: Letter J.F. to Vasquez. 4/25/96.

State Exhibit D (pages 7-12 only admitted as exhibit.): Checks, loan agreement and letter from E.C.'s counsel dated 2/28/96.

State Exhibit E: Patient Records, Billing Statements. E.C.

State Exhibit F: Cancelled checks. E.C.

State Exhibit G: Cancelled checks. B.C.
State Exhibit H: Cancelled checks. Investment in Shop.
State Exhibit I: Business Card.
State Exhibit J: Letter, B.C. & E.C. to Respondent and L.M.. 3/16/94.
State Exhibit K: Billing statements. J.F.
State Exhibit L: Patient Records: J.F., R. McTaggart.
State Exhibit M: Log.
State Exhibit N: Cancelled checks and Master Card statements.
State Exhibit O: Patient Records: J.F., D.H.
State Exhibit P: Patient Records: J.F., Menninger Clinic.
State Exhibit Q: Curriculum Vitae. Patricia L. Kelley
State Exhibit R: Curriculum Vitae. D. H.
State Exhibit S: Application for License. R. McTaggart.

Respondent Exhibit 1: Summary of B.C. Treatment.
Respondent Exhibit 1A: Patient Records of B.C.
Respondent Exhibit 2: Summary of E.C. Treatment.
Respondent Exhibit 2A: Patient Records of E.C.
Respondent Exhibit 3: Letter of S.W. to Whom It May Concern dated 1/23/95.
Respondent Exhibit 4: Transcript of telephone call J.F. to R. McTaggart. 8/25/95.

III. Background And Patient-Therapist Relationships:

A. Respondent Robert Thomas McTaggart:

5. The Respondent, Robert Thomas McTaggart, was issued license number 00281 to practice as a social worker in Iowa on April 2, 1986. (Application for License). Official notice is taken of these facts which are capable of certain verification through review of agency records. Fairness does not require that the parties be given an opportunity to contest these facts. He received his Master of Arts degree in Social Work in 1966. He has been in the Des Moines area since 1970.

B. Patient-Therapist Relationship Between E.C. and Respondent:

6. It is undisputed that Respondent began treatment of E.C. in 1978. Respondent also admitted in his testimony: (a) that he and his wife were co-therapists of E.C. in 1983 and 1984; (b) that he saw E.C. in group as a patient in 1987 and 1988; and (c) that he was involved in joint counseling of E.C. and her husband in 1986-87 and in 1991.

7. The greater weight of the credible evidence demonstrates that E.C.'s patient therapist relationship with Respondent continued to at least the end of 1993. This evidence includes the testimony of E.C., her husband B.C., and checks written by E.C. some of which were to pay for individual therapy with Respondent or couples therapy co-therapized by Respondent and his wife. (EX. F).

8. E.C. originally began to see the Respondent for depression and problems in her marriage. At the time, she was married to her first husband. She was divorced in April of 1992. She and her husband were patients of Respondent for several months ending in late 1978 or early 1979. They did not see Respondent for approximately one and a half years. She returned for therapy for depression in September of 1980. She also had body image problems, was bulimic, and felt she did not function well in the workplace. She saw Respondent individually and then

in group therapy. She then went into a women's group and was counseled by L.M..

9. E.C. next saw Respondent as a participant in a weekly mixed (male and female) group in 1982 or 1983 where Respondent and L.M. were co-therapists. This continued until early 1984. At this time, she went to another weekly mixed group co-therapized by the Respondent and L.M.. Then she went into a group and individual therapy with L.M. only until 1987, when she entered into a couples group cotherapized by the Respondent and L.M.. In 1988, the couples group was disbanded. She and her husband B.C. were married in February of 1988. They then began couples therapy which continued until at least August of 1993 with Respondent and L.M.. Checks made out by either E.C. or her husband support the proposition that they received therapeutic services from Respondent and L.M. until the end of 1993. (EX. F, G). E.C. and her husband formally ended their patient-therapist relationship with the Respondent and L.M. by letter dated March 16, 1994. (EX. J).

C. Patient Therapist Relationship Between J.F. and Respondent:

10. J.F. is a social worker. She joined the same clinic where Respondent worked in March of 1992. Her marriage ended in November of 1993.

11. In November of 1989, she and her husband began both couples and individual therapy with the Respondent due to marital problems. She returned to therapy with Respondent in mid-1991. Among the issues dealt with at that time were (a) post traumatic stress disorder resulting from physical and sex abuse she sustained during her childhood and (b) sexual issues in her marriage. The therapy was successful for her. Her last session at that time was in January of 1992. (EX. K). Her husband continued in therapy.

12. Respondent admits that J.F. was his patient beginning in 1989, but averred at hearing that the relationship ended in December of 1991. He acknowledged that there was a progress note indicating he did see her on January 2, 1992. (EX. L). Respondent also admitted (a) that J.F.'s husband continued to see him after January of 1992, (b) that he would be available as a therapist for follow-up of patients whose therapy may have appeared to have ended, (c) his recordkeeping does not reflect when the patient-therapist relationship ended, and (d) it was not unusual for patients to return after the apparent termination of their treatment. Under these circumstances, although Respondent alleged J.F. said she no longer needed therapy in January of 1992, there is no clear delineation marking the end of the client-therapist relationship.

13. J.F.'s testimony is more credible than Respondent's with respect to the issue of how long the patient therapist relationship with Respondent extended. In either December of 1992 or January of 1993, J.F. and her husband had a formal therapy session with Respondent at his clinic to discuss problems that had arisen with their buying a house. Her husband continued to see Respondent, either individually or in a men's group, until the summer of 1993. (EX. C). In the fall of 1993, she had another, but less formal, therapy session with Respondent. Respondent also provided counseling to J.F. in less formal settings. For example, in November of 1993, Respondent advised her to not try to talk her husband out of leaving the family. After the last sexual intercourse between J.F. and Respondent, on November 10, 1994, she told Respondent that she had made a will. When Respondent asked her if she intended to kill herself, she did not answer. He advised her to see Dr. Randolph Johnson "for Prozac." (EX. C). The Board credits J.F.'s statement that, "In essence (sic) from the time I first met Mr. McTaggart in November 1989 until my sister called him in November 1994 to tell him to stay away from me because I was dying, there was no clear demarcation as to when therapy ended, when we became colleagues, or for that matter, when he began abusing me." (EX. C).

D. Expert Opinions of Professor Kelley:

14. The credible expert testimony of Professor Patricia L. Kelley, Director of the School of Social Work at the

University of Iowa, is also helpful in determining issues concerning the patient-therapist relationship. Professor Kelley's testimony made several points about the patient-therapist relationship which this Board finds to be true. First, as noted above, Respondent acted as co-therapist to both E.C. and J.F. and their husbands. A co-therapist is still a therapist involved in a patient-therapist relationship with the patient. Second, when a member of the family is undergoing therapy, the patient or client must be viewed as encompassing the family system. Therefore, the client or patient-therapist relationship extends to other members of the family when a member is being treated. Third, the fact that a patient may also be a social worker is of no significance in determining the duties of the therapist to that patient. The patient-therapist relationship is paramount, not the therapist-colleague relationship. Third, it is the therapist's duty to understand that the patient-therapist relationship ends when the problem for which therapy is sought has been completely addressed. If possible, the therapist is required to discuss this decision with the patient. The termination must be recorded in the therapist's notes. It follows that, without such a firm delineation of the end of the relationship, it cannot be said to have ended.

15. The need for a firm delineation of the end of the patient-therapist relationship is especially clear in the case of the sexual relationship between the patient or former patient and therapist. The therapist wields great power over the patient. A sexual relationship with the patient or former patient may make the patient more dependent. While Professor Kelley opined that sex between the therapist and former patient is never ethical, there is a school of thought which holds that sex may be acceptable five years after the end of the patient-therapist relationship. The Board notes that it need not decide the issue in this case as the patient-therapist relationships were not clearly ended when physically intimate or sexual activity occurred between Respondent and his patients, E.C. and J.F.. Nonetheless, it notes with approval Professor Kelley's opinion that a sexual relationship is never acceptable between the therapist and patient or former patient when the patient was the victim, as J.F. was, of sexual abuse. No ethical therapist would exploit such a state of vulnerability in a patient by a sexual relationship which sets the patient up to feel abused, used, and, ultimately, rejected.

IV. Sexual Misconduct:

A. E.C.:

16. Respondent admits that he engaged in a sexual relationship with E.C. which began in the fall of 1985. He alleges that the relationship and any other sexual touching ended in December of 1985 or January of 1986. The state conceded in its closing argument that sexual intercourse between E.C. and Respondent ended before Respondent was licensed as a social worker in January of 1986. Therefore, the intercourse is beyond the jurisdiction of the Board. The preponderance of the credible evidence demonstrates, however, that sexual touching and physical intimacies directed by Respondent toward E.C. also occurred during the period from 1988 to 1991.

17. During the time when Respondent was having sexual intercourse with E.C., he told her that the sexual intercourse was no one else's business. He said they were only friends and he would not hurt her. He also warned her not to tell anyone of the intercourse because, if his wife found out, he would lose his practice, his children, and his marriage. Later, from 1987 or 1988 and continuing until 1991, Bob would telephone her and ask her if she had said anything about their relationship. These facts demonstrate the manipulative nature of the sexual relationship with his patient which was later reflected in his sexual relations with J.F..

18. The physical intimacies which occurred from 1988 to 1991 included Respondent rubbing E.C.'s leg, hugging her, kissing her on the cheek and mouth, wrapping his arms around her from behind, rubbing his body against her, changing his clothes in front of her and asking her if she thought he was attractive or too fat, and running his hand up her leg to her crotch.

B. J.F.:

19. After J.F. joined the clinic, Respondent began to flirt with J.F. by making sexual comments to her in 1993. J.F. flirted back as she felt flattered by Respondent's attention. This flirtation escalated into a physical relationship in October of 1993. J.F. agreed to a sexual relationship because she felt Respondent wanted her to agree. J.F. had sexual relations on numerous occasions with Respondent from October 23, 1993 to November 10, 1994. (EX. M). Respondent admits that he and J.F. engaged in a sexual relationship during this period, although he alleges that J.F., and not he, initiated it.

20. Even if J.F. had initiated the relationship, it would make no difference in this case. It is the therapist's duty to dissuade the sexual advances of the patient and to not accede to them. The therapist must be aware of the phenomena of transference and countertransference, which were noted in Professor Kelley's testimony, and of their potential for interfering with effective therapy. Official notice is taken of the following definitions which are readily capable of certain verification and are within the specialized knowledge of the Board. Fairness to the parties does not require they be given an opportunity to contest these facts:

Transference: 1. The mental process whereby a person transfers patterns of feelings and behavior that had previously been experienced with important figures such as patients or siblings to another person. Quite often the feelings are shifted to the psychiatrist.

Countertransference: In psychoanalytic theory, the development by the analyst of an emotional (i.e. transference) relationship with the patient. The therapist may in this situation lack objectivity.

Taber's Cyclopedic Medical Dictionary 392, 1759 (1985).

21. The sexual relationship between J.F. and Respondent inflicted great harm upon her. During this relationship, J.F. became increasingly depressed. She had thought about terminating her marriage in order to marry Respondent, but came to understand that would not happen. (EX. O). She understood that she could not let the secret of their relationship out and would rather have died than have done so. She was sleeping 15 hours a day and became virtually nonfunctional. She could not recognize anything about herself. By the end of the sexual relationship with Respondent, she noted that she looked like a concentration camp victim.

22. The Board credits the testimony of D.H., a psychotherapist who has treated J.F. since November 11, 1994, as well as the accounts of her treatment given in his records and the records provided by the Menninger Clinic. (EX. O, P, R). D.H. noted that J.F. became his patient because she was suicidal and depressed. He referred her to Menninger Clinic because she was not responding to treatment and planned to commit suicide. Although it was known to D.H. that J.F.'s problems stemmed from a sexual relationship with another therapist, J.F. could not bring herself to reveal Respondent's identity or that he had treated her. Her sister informed D.H. about Respondent at the time of J.F.'s admission to Menninger Clinic. The discharge summary at Menninger's, dated January 11, 1995, noted:

In the context of the breakup of a sexualized affair with a previous therapist, the patient had become multiply symptomatic with symptoms of a major depression, panic, and anxiety. She had broken down across all areas of functioning including her work, her relationship with her children, her relationship with men, and her relationship, most significantly, with herself. She had become seriously suicidal with lethal plans, and was hospitalized.

(EX. P). J.F. did make a suicide attempt on May 31 1995. (EX. O).

23. D.H.'s treatment of J.F. ended temporarily effective June 13, 1995, as she began treatment with a psychiatrist, D.D. (EX. O). J.F. returned as his patient, however, in September of 1995 and remains so today. D.H. continued to treat her for major depression and anxiety. On December 30, 1995, she was hospitalized due to a trauma episode. She woke up in a closet with a knife in her hand. She thought that her relationship with Respondent will kill her. J.F. did not improve until Spring of 1996 and has continued to improve. In D.H.'s opinion, which this Board credits, neither J.F.'s symptoms nor her account of the cause of her symptoms, i.e. her sexual relationship with Respondent, are in any way fabricated.

V. Violation of Confidences and Secrets of Patients:

24. The Board credits the testimony of E.C. and B.C. concerning instances where Respondent revealed the secrets or confidences of his patients to them. The Board finds that there are at least three specific instances stated in sections 1, 2, and 4 on pages 4 and 5 of Exhibit D, which was read into the record, shown to be violations by a preponderance of the evidence. The violation in section 2 is that Respondent informed B.C. that J.C. was his client.

VI. Alleged Solicitation and Receipt of Loans From a Patient:

25. Respondent is charged with soliciting and receiving loans from E.C., in 1984 and 1989, during the course of their patient-therapist relationship. (Statement of Charges).

26. It is admitted by Respondent that he solicited and received the 1984 loan for \$5000.00 from E.C..

27. Since the only loan shown in the record was the 1984 loan, which is outside of the jurisdiction of the Board as it occurred before the Respondent was licensed, the Board must find there is no violation on Counts V and VI of the Statement of Charges.

VII. Credibility:

28. A number of credibility findings have already been made above. The Board notes that the demeanor of E.C. and J.F. enhanced their credibility. Their testimony was forthright, thorough, and detailed. There is no doubt that their testimony of the sexual misconduct of Respondent is truthful and valid. With the exception of E.C.'s testimony on the 1989 loan, their testimony is credited over that of Respondent in those instances where there is a material variance between their testimony and Respondent's. While their experiences are not, of course, identical, the similarity of their experience with respect to sexual abuse at the hands of Respondent enhances their credibility. One element that was clearly impressed, either overtly or otherwise, upon E.C. and J.F. by Respondent was the absolute requirement to keep their sexual relationship with him a secret. The Board does not believe that either J.F. or E.C. gave false testimony on issues of material fact because of any lawsuits pending against Respondent.

29. The professional qualifications of Professor Kelley and D.H., set forth in their respective resumes, also provide support for the Board's findings that their testimony is credible. (EX. Q, R). Their credibility depends not on their abstract qualifications alone, but also on either their awareness of the actual facts of this case or on opinions based on hypothetical situations which reflect the circumstances in this case.

30. While Respondent's damaging admissions enhanced his credibility in some respects, the Board is left with the impressions (a) that Respondent was aware that the evidence on some of the charges was so strong that they could not be successfully denied, and (b) that some of his testimony is self-serving and untruthful, such as the suggestions that J.F. initiated their sexual relationship.

31. In closing argument, Respondent's counsel suggested that J.F. was "playing the oldest game there is," i.e. trying to extract money for a false claim. The Board rejects this argument. Respondent's counsel apparently based this argument on the transcript of a conversation between J.F. and Respondent on August 25, 1995. (EX. # 4). At most, the Board views this transcript as evidence of an attempt by a victim of sexual abuse, who is not a lawyer, to obtain some compensation for that abuse from her abuser. The suggestion, that J.F., as a licensed professional, should be viewed as an adult who went into an affair with a coworker with her eyes open, ignores the principles that the patient-therapist relationship is paramount and that it is the therapist duty's to avoid any sexual relationship with a patient, even one who is also a therapist.

VIII. Discipline:

32. The sexual misconduct violations in this case would, alone, justify the discipline imposed. The suffering sustained by E.C. and J.F. demonstrate the risk faced by future female clients of Respondent if insufficient discipline is imposed. A message must be sent to the public, to the social work community, and to the Respondent that the violations in this case are serious and have serious consequences. At the same time, discipline should take into account the possibility that Respondent's behavior may have been influenced by alcoholism, sexual addiction, both of which have been indicated in the record, or by other psychological impairment. Respondent may, after appropriate treatment, be able to have his license reinstated to a degree consistent with the need to protect the public. Taking all of these factors into account, the discipline set forth in the Decision and Order should be imposed.

IX. Ex Parte Communication:

33. Mr. Critelli, Respondent's counsel, acted in a professional and, to the extent compatible with his duty to be a zealous advocate for his client, courteous manner throughout the hearing. An example of this professionalism and courtesy occurred at the outset of the case, when Mr. Critelli elected to not object to the presence of E.C.'s and J.F.'s counsel during their respective testimony. Nonetheless, we are constrained to point out an incident where, we believe through inadvertence, Mr. Critelli may have violated the spirit and, perhaps, the letter of the law prohibiting ex parte communication. During a break in the case on the second day of hearing, and at a time when Ms. Adams, counsel for the state, was out of the hearing room, Mr. Critelli engaged Mr. Buchanan in a discussion concerning lawyer discipline. The administrative law judge and other members of the Board were also present. During the course of that discussion, Mr. Critelli pointed out that some violations may have resulted because an attorney was impaired due to substance abuse. He expressed the feeling that the disciplinary authorities did not adequately take such impairments into account when imposing discipline. In his closing argument, Mr. Critelli noted Respondent's disability and suggested, in effect, that it be taken into account as a mitigating factor in his discipline. In hindsight, we believe it would be better if the earlier discussion on attorney discipline and substance abuse impairment had not taken place. We regret this was not brought to the parties' attention immediately following closing argument.

CONCLUSIONS OF LAW:

I. Procedure:

1. This hearing was undertaken pursuant to the statutory authority set forth in Iowa Code sections 10A.202(1), 17A.12, 154C.4, and 272C.6 and the rule authority set forth in 481 IAC 10.20, 641 IAC chapter 173, and 645 IAC 280.207.

II. Official Notice:

2. Official notice was taken of certain facts. Official notice may be taken of all facts of which judicial notice

may be taken and of matters within the specialized knowledge of the agency. Iowa Code S 17A.14(4). Judicial notice may be taken of matters which are "common knowledge or capable of certain verification." In Re Tresnak, 297 N.W.2d 109, 112 (Iowa 1980). "Judicial notice does not depend on the actual knowledge of [adjudicators]. When the fact is alleged, they must investigate, and may refresh their recollection by resorting to any means which they may deem safe and proper." Haaren v. Mould, 144 Iowa 296, 303, 122 N.W. 921, 923 (1909). An agency may be permitted to take official notice in its decision of facts contained in the reports and records in its files. Schwartz, Administrative Law S 7.19 p. 405-06 (1991).

III. Sexual Misconduct:

3. The sexual misconduct undertaken by Respondent against E.C. and J.F. after he became a licensee violated the following administrative rules:

645 - 280.212 Grounds for discipline:

...

280.212(3) Knowingly . . . engaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established. [This rule implements the requirement of Iowa Code S 272C.10(3)].

...

280.212 (14) Prohibited acts consisting of the following:

e. Any sexual intimidation or sexual relationship between a social worker and a client.

...

280.213(3) *Integrity, propriety, objectivity*. A licensee shall not:

a. Make sexual advances toward, or engage in physical intimacies or sexual activities with any client/patient . . . of the licensee. [This is grounds for discipline under 645 IAC 280.212(9)].

645 IAC 280.212(3), .212(9), .212(14)(e), .213(3).

IV. Violation of Confidences and Secrets of Patients:

4. When the Respondent revealed the confidences and secrets of patients to E.C. and B.C., he violated the following administrative rule:

280.213(2) *Confidentiality*. A licensee shall not:

a. Reveal a confidence or secret of any client.

645 IAC 280.213(2)(a). Violation of this rule is grounds for discipline. 645 IAC 280.212(9).

V. Alleged Solicitation and Receipt of Loans From a Patient:

5. No violation has been established.

VI. Credibility:

6. In addition to the factors mentioned in the findings of fact on credibility, the Board has been guided by the following principles: First, "[t]he trier of facts may not totally disregard evidence but it has the duty to weigh the evidence and determine the credibility of witnesses. Stated otherwise, the trier of facts . . . is not bound to accept testimony as true because it is not contradicted." In Re Boyd, 200 N.W.2d 845, 851-52 (Iowa 1972); accord Nadler v. City of Mason City, 387 N.W.2d 587, 591 (Iowa 1986); Loudon v. Hill, 286 N.W.2d 189, 193 (Iowa 1979) ("Evidence need not be believed even when it is not contradicted."); Moser v. Brown, 249 N.W.2d 612, 616 (Iowa 1977) ("It is well settled the finder of facts is not bound to accept testimony as true because it is not contradicted.").

7. Second, in determining whether testimony is credible, the factfinder may consider other facts and circumstances in the evidence. Platter v. Minneapolis & State L. R. Co., 102 Iowa 142, 151, 157, 143 N.W. 992 (1913). These facts include the interests of the witnesses. See Kaiser v. Strathas, 263 N.W.2d 522, 526 (Iowa 1978).

8. Third, the ultimate determination of the finder of fact "is not dependent on the number of witnesses. The weight of the testimony is the important factor." Wiese v. Hoffman, 249 Iowa 416, 424, 86 N.W.2d 861, 867 (1957). In determining the credibility of a witness and what weight is to be given to testimony, the factfinder may consider the witness's "conduct and demeanor. . . [including] the frankness, or lack thereof, and the general demeanor of witnesses," In Re Moffatt, 279 N.W.2d 15, 17-18 (Iowa 1979); Wiese v. Hoffman, 249 Iowa 416, 424, 86 N.W.2d 861, 867 (1957), as well as "the plausibility of the evidence. The [factfinder] may use its good judgment as to the details of the occurrence . . . and all proper and reasonable deductions to be drawn from the evidence." Wiese v. Hoffman, 249 Iowa 416, 424-25, 86 N.W.2d 861 (1957).

9. Finally, with respect to expert testimony:

The acceptance or rejection of opinion evidence does not depend upon the expert's abstract qualifications alone. Bernal v. Berhardt, 180 N.W.2d 437 (Iowa 1970). Such an opinion must necessarily be tested by the specific facts upon which it is based, stated by the witness or stated in a hypothetical question. Albrecht v. Rausch, 193 N.W.2d 492 (Iowa 1972). We have said an expert's opinion rises no higher than the level of evidence and logic on which it is predicated. In re Springer's Estate, 252 Iowa 1220, 110 N.W.2d 380 (1961). Even if uncontroverted, expert opinion testimony is not binding on the trier of fact; it may be accepted in whole, in part, or not at all. Olson v. Katz, 201 N.W.2d 478 (Iowa 1972).

Wilson-Sinclair Co. v. Griggs, 211 N.W.2d 133, 142 (Iowa 1973).

VII. Ex Parte Communication:

10. The prohibition against ex parte communication and the requirement to notify the parties of such communication to the adjudicator is set forth in the Iowa Administrative Procedures Act:

Unless required for the disposition of ex parte matters specifically authorized by statute, parties or their representatives in a contested case shall not communicate, directly or indirectly, in connection with any issue of fact or law in that contested case, with individuals assigned to render a proposed or final decision or to make findings of fact or conclusions of law in that contested case, except upon notice and opportunity for all parties to participate as shall be provided by agency rules. The agency's rules may require the recipient of a prohibited communication to submit the communication if written or a summary of the communication if oral for

inclusion in the record of the proceeding.

Iowa Code S 17A.17(2)(emphasis added). The rule requiring that notice of such ex parte communications be given the parties is set forth at 641 IAC 173.9(2).

DECISION AND ORDER

THEREFORE, IT IS HEREBY ORDERED THAT:

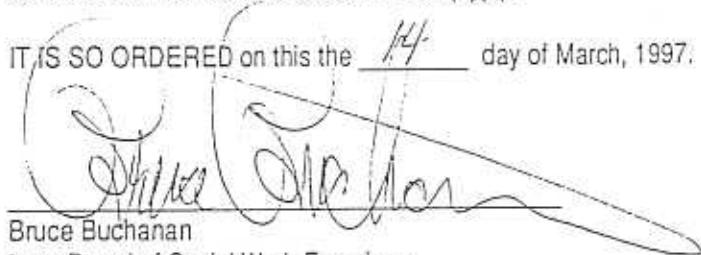
1. The Respondent's license to practice social work is suspended indefinitely, effective upon service of this order, until further order of the Board with no possibility of reinstatement until nine (9) months from the date of this order
2. The Respondent shall meet the following conditions prior to applying for reinstatement of his license:
 - a. The Respondent shall undergo a full psychiatric evaluation including but not limited to his problems with alcoholism and sexual addiction. The evaluation shall be conducted by a treatment center or therapist approved in advance by the Board of Social Work Examiners. Prior to the evaluation, the evaluator shall be provided with a copy of the full record of this case, including transcript, at the Respondent's expense. Respondent shall waive confidentiality of the record so that it may be provided for his evaluation and treatment.
 - b. The Respondent shall provide, from a Board approved treatment center or therapist, an initial treatment plan, designed to address any psychiatric problems, including but not limited to alcoholism and sexual addiction. This initial treatment plan shall be subject to the approval of the Board. The Respondent shall undergo treatment pursuant to such approved plan.
 - c. The Respondent shall sign a release that (a) will enable the Board to freely communicate with all individuals directly involved in Respondent's psychiatric evaluation and treatment, (b) provide for full access by the Board to all records maintained with respect to such evaluation and treatment, and (c) provide for monthly reports on Respondent's progress to be submitted directly to the Board by those entities administering Respondent's treatment. It is Respondent's responsibility to ensure that such monthly progress reports are provided to the Board.
3. If, after the expiration of the above mentioned nine (9) month period, the Respondent wishes to apply for reinstatement of his license, no reinstatement shall be granted unless Respondent makes a personal appearance before the Board at a time and place designated by the Board. The Board shall then consider the record in this case, all evaluation and treatment information, Respondent's personal appearance, and any other information the Board deems to be pertinent for determining whether and to what extent Respondent's license shall be reinstated. The Board retains full authority to revoke, to continue suspension of, to restrict, or to fully reinstate Respondent's license, to place Respondent on probation, or to take other appropriate action consistent with the protection of the public interest.
4. All costs incurred by the Respondent in complying with this Order shall be the sole responsibility of the Respondent.
5. The Respondent shall promptly remit to the Board payment for the costs associated with these proceedings. The Board shall bill the Respondent for these costs and the Respondent shall remit payment

within thirty (30) days of receipt of billing for these costs, which include but are not limited to the following items: court reporter, witness fees and expenses.

6. If Respondent moves from this state to reside or practice social work in another state, he shall notify the Board in writing fourteen (14) days prior to his departure.

7. The Respondent shall fully and promptly comply with all Orders of the Board and the statutes and rules regulating the practice of social work in Iowa. Violation of the terms of this Order is a ground for further disciplinary action, upon notice and opportunity for hearing, for failure to comply with an Order of the Board, as set forth in Iowa Code section 272C.3(2)(a).

IT IS SO ORDERED on this the 14 day of March, 1997.

A handwritten signature in dark ink, appearing to read "Bruce Buchanan", is written over a horizontal line. The signature is fluid and cursive.

Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

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BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

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CASE NUMBER: 95-02

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ROBERT THOMAS MCTAGGART,

)

NOTICE OF HEARING

)

Respondent.

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TO THE ABOVE NAMED RESPONDENT:

On the 30th day of April, 1996, the Iowa Board of Social Work Examiners reviewed the investigative file of the Respondent, Robert Thomas McTaggart, and concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

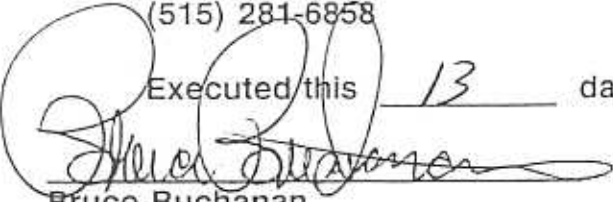
IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 9:00 a.m. on the 17th day of June, 1996, at the Lucas State Office Building, 4th floor, Des Moines, Iowa, 50319.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather L. Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319
(515) 281-6858

Executed this 13 day of May, 1996.



Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 95-02
	)	
ROBERT THOMAS MCTAGGART,	)	STATEMENT OF CHARGES
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1995).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Robert Thomas McTaggart was at all times during the following events a licensed social worker. Respondent was issued license number 00281 to practice as a social worker in the state of Iowa on January 1, 1986, as recorded in the permanent records in the office of the Board.

Respondent's license to practice social work in Iowa is current and will next expire on December 31, 1996.

Respondent's current address as reported to the Board is 520 Polk Boulevard, Des Moines, Iowa, 50312.

COUNT I

Respondent is charged with engaging in unethical conduct in the practice of social work in violation of Iowa Code § 272C.10(3) and 645 Iowa Administrative Code 280.212(3), when he engaged in sexual relationships with J.F. and E.C.

COUNT II

Respondent is charged with engaging in prohibited acts in the practice of social work in violation of 645 Iowa Administrative Code 280.212(14)(e), when he engaged in sexual relationships with patients J.F. and E.C.

COUNT III

Respondent is charged with making sexual advances toward, or engaging in physical intimacies or sexual activities with a client or patient, in violation of 645 Iowa Administrative Code 280.212(9) and 280.213(3), when he engaged in sexual relationships with patients J.F. and E.C.

CIRCUMSTANCES

1. Respondent engaged in a sexual relationship with patient J.F. from October of 1993 to November of 1994.
2. Respondent engaged in a sexual relationship with patient E.C. from 1985 to 1991.

COUNT IV

Respondent is charged with revealing confidences and secrets of clients and patients in violation of 645 Iowa Administrative Code 280.212(9) and 280.213(2)(a), when he revealed confidential information to patients E.C. and B.C.

CIRCUMSTANCES

1. Respondent revealed to patients E.C. and B.C. confidential information concerning at least eight patients.

COUNT V

Respondent is charged with unethical conduct in the practice of social work in violation of Iowa Code § 272C.10(3) and 645 Iowa Administrative Code 280.212(3), when he solicited and received loans from patient E.C.

COUNT VI

Respondent is charged with exercising undue influence on a client or patient for the financial gain of Respondent in violation of 645 Iowa Administrative Code 280.212(9) and 280.213(3)(f), when he solicited and received loans from patient E.C.

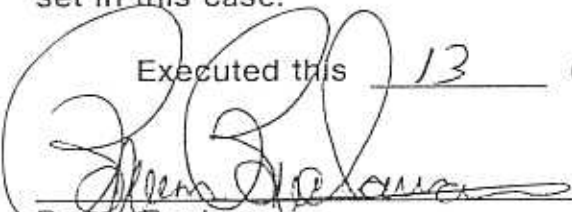
CIRCUMSTANCES

1. Respondent solicited and received loans from patient E.C. in October of 1989 and in 1984.

FINDING OF PROBABLE CAUSE

On April 30, 1996, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 13 day of May, 1996.



Bruce Buchanan

Iowa Board of Social Work Examiners
Board Chairperson